

# FEDERAL MARITIME COMMISSION

## Office of Administrative Law Judges

TOYOTA DE PUERTO RICO CORP., *Complainant*

v.

PUERTO RICO PORTS AUTHORITY, CROWLEY PUERTO RICO SERVICES, INC., AND OCEANIC GENERAL AGENCY, INC.,  
*Respondents.*

**DOCKET NO. 19-02**

Served: April 1, 2019

---

**BEFORE:** Erin M. WIRTH, *Administrative Law Judge.*

---

### ORDER FOR COMPLAINANT TO SHOW CAUSE WHY ITS OPPOSITION TO PRPA'S MOTION TO DISMISS SHOULD NOT BE STRICKEN

On March 29, 2019, Complainant Toyota de Puerto Rico Corp. ("Toyota") filed an opposition to the motion to dismiss filed by Respondent Puerto Rico Ports Authority ("PRPA"). The opposition appears to contain errors so egregious that the undersigned would consider striking the filing. Toyota will be given an opportunity to provide an explanation and to correct citations in its opposition. It will not be permitted, however, to correct or make additional arguments in support of its opposition to PRPA's motion to dismiss.

The primary concern is what appears to be material misrepresentation of legal authority in the brief. For example, in its opposition, Toyota states:

In the past, PRPA has failed to demonstrate that it is an arm of the state in cases before the FMC and before the federal courts. Therefore, it is not entitled to sovereign immunity. "PRPA's enabling act "does not by its terms structure [PRPA] to be an arm of the state." *Fresenius v. PRPA*, 322 F.3d 56, 68 (1st Cir. 2003) . . . .

Opposition at 7 (punctuation in original). The case of *Fresenius Med. Care Cardiovascular Res. Inc. v. Puerto Rico* involves the "Puerto Rico and the Caribbean Cardiovascular Center Corp. (PRCCCC)," and states: "The enabling act that created PRCCCC, 24 P.R. Laws Ann. §§ 343-343k(2000), does not by its terms structure PRCCCC to be an arm of the state." *Fresenius Med. Care Cardiovascular Res. Inc. v. Puerto Rico*, 322 F.3d 56, 59, 68 (1st Cir. 2003).

As another example, regarding whether tolling of the statute of limitations under *American Pipe* applies to Commission proceedings, the opposition states: "That rule was adopted by this Commission on Oral Argument last June 30, 2018, in **In Re Vehicle Carrier Services, supra, pp. 18.**" Opposition at 6. The case citation for *In Re Vehicle Carrier Services* is "2018 WL 3738501, Docket Nos. 16-01, 16-07, 16-10, and 16-11." Opposition at 5 n.3. The Commission's docket logs do not show an oral argument for any of those cases and there are no docket entries for June 30, 2018.

This brings up a secondary issue. On February 6, 2019, the undersigned issued an initial order which indicated how cases should be cited:

*Case citations.* Because the Commission currently uses Lexis, citations to judicial opinions on Westlaw should include a parallel citation to Lexis, if possible. Citations to Commission decisions or rulings may be made to the official F.M.C. reporters including the upcoming F.M.C.2d, Pike & Fischer Shipping Regulation Reports (S.R.R.), Lexis or Westlaw, or Commission slip opinions or orders by docket number, title, and date of service. Citation to Lexis or Westlaw must include the corresponding S.R.R. citation or the F.M.C. docket number, the title of the case, and the precise date of the ruling. If a document from another source is cited, the decision or ruling must be transmitted via e-mail to [judges@fmc.gov](mailto:judges@fmc.gov).

Initial Order at 2 (para. 5).

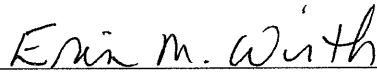
Because the Commission currently uses Lexis, citations must include enough identifying information to be located and the initial order specifically states that citations to Westlaw include “the F.M.C. docket number, the title of the case, and the precise date of the ruling.” However, in a number of cases cited in the opposition, there is not sufficient information to locate the case or the case citation appears incorrect. For example, the opposition includes a citation to “*FIAT Chrysler v. Wallenius*, 2011 WL 551713; Docket No. 17-09 (2018 F.M.C.).” Opposition at 5 n.5. As docket 17-09 was filed in 2017, it seems unlikely that Westlaw would have any 17-09 documents in its 2011 WL database.

By April 10, 2019, Toyota must show cause why the opposition brief should not be stricken. Toyota may not make or amend any arguments from the opposition. However, Toyota shall prepare and include a table of citations. The table of citations should list every citation in the opposition, include a corrected citation, if necessary, and include the page number of the citation in the opposition. Toyota may elect to exclude some of its citations. For example:

|                                                                          |                                                                                                                   |      |
|--------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|------|
| <b>OLD:</b> <i>Fresenius v. PRPA</i> , 322 F.3d 56, 68 (1st Cir. 2003) . | <b>NEW:</b> <i>Fresenius Med. Care Cardiovascular Res. Inc. v. Puerto Rico</i> , 322 F.3d 56, 68 (1st Cir. 2003). | p. 7 |
|--------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|------|

By April 22, 2019, Respondent PRPA may respond to Toyota’s response to the notice to show cause. PRPA will be provided additional time to reply to the opposition and should file their reply to the opposition to their motion to dismiss on April 22, 2019, so that the proceeding may move forward expeditiously.

In addition, on March 26, 2019, Toyota filed a motion requesting a one-day enlargement of time to file an opposition to the motion to dismiss filed by Respondent PRPA. The motion indicates that Complainant required additional time to “prepare a responsible reply.” Good cause having been stated for the one-day extension, it is hereby ordered that the motion be **GRANTED**.



Erin M. Wirth  
Administrative Law Judge